

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

**2023PRCE012433: IN THE MATTER OF LYLE ARMSTRONG
06/23/2026 in Department J6
Account and Report**

Notice is insufficient re Request for Periodic Payments.

Notice of Hearing (GC-020) served by mail on 06/09/26. Conservator has given notice of how to file an objection to the petition (which has to be given for the period and in the manner provided in Chapter 3 (commencing with Section 1460) of Part 1) Pr. C. §2643.1(c)(1); notice to the court investigator for the period and in the manner provided in Chapter 3 (commencing with Section 1460) of Part 1) Pr. C. §2643.1(c)(2).

The length of the notice is insufficient. 14 days' notice was given when 15 days' notice is required. (Probate Code §2643.1(c)(1) and (c)(2))

Upon sufficient service of notice, and subject to any objections, the court intends to grant the request for periodic payments of \$2,000.00 per quarter for the period of the Second Account and report (01/31/26 – 01/30/28).

Nancy Elmore Armstrong objects to some of the reimbursement request by Sarah Armstrong. Specifically as to the following charges: Netflix, Gelson's and the storage fees.

Sarah to provide proof of the amounts spent and details of the expenses.

Nancy Elmore-Armstrong objects to payment of fees to Sarah Armstrong and Mary Kulvinskaskas.

the Settlement Agreement which states:

"I, Attorney Fees. Except for MS. VIETS and LYLE, each Party will bear their own attorney fees, costs, and expenses incurred in connection with the Action and the negotiation and execution of this Agreement through and including the Effective Date. In any future proceeding to enforce or interpret any of the terms or provisions of this Agreement, the prevailing Party in such future action shall be entitled to recover his or her reasonable attorney fees and costs in addition to any other appropriate relief."

The Action is defined at Section I. Recitals ¶¶I, “The 850 Petition, Objections to 850 Petition, Joinder to 850 Petition, Petition for Instructions, and Objections to Petition for Instructions are referred to herein as the Action.”

The fees requested by Mary Kulvinskaskas are solely for the petition for appointment and subsequent administration of the estate (See discussion in previous workup). Sarah was originally represented by Mr. Young at the Alvarez firm and then Mary Kulvinskaskas. The fees are from 07/01/24 – 02/23/26. There are no entries re the 850 petition as the parties agreed that those attorney fees could not be reimbursed by the conservatorship estate.

The court intends to allow the fees to Mary Kulvinskaskas.

The court intends to approve the first account and report; Approve payment of conservator fees of \$11,167.50 to conservator of the estate, Laura Viets; Approve payment of attorney fees of \$ 17,459.00 to Amy J. Cannon; Approve payment of attorney fees of \$30,517.50 to Vivian Christensen; Approve payment of attorney fees to Mary P. Kulvinskaskas in the amount of \$16,750.00, plus reimbursement of costs in the amount of \$357.35; Approve reimbursement to Sarah Armstrong in the mount of \$18,792.00 for amounts she paid for attorney fees to the Alvarez Firm. The court orders bond increased to \$445,229.21.

The court reserves as to the request for payment of periodic fees for the conservator of the estate for statutorily sufficient service of notice; and for reimbursement to Sarah Armstrong for Sarah Armstrong to file a verified declaration re the requested reimbursement.

The court intends to continue the hearing re request for periodic payments to conservator of the estate and reimbursement to Sarah Armstrong to 08/11/26 at 9:00 a.m. in Department J6.

Conservator of the Estate to give notice.